

SENATE No. 2546

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

SENATE, July 10, 2025.

The committee on Public Health to whom was referred the petition (accompanied by bill, Senate, No. 1549) of Patricia D. Jehlen, John F. Keenan, Michael J. Barrett, Patrick M. O'Connor and other members of the Senate for legislation to increase access to disposable menstrual products, report the accompanying bill (Senate, No. 2546).

For the committee,
William J. Driscoll, Jr.

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An Act to increase access to disposable menstrual products.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 23B of the General Laws is hereby amended by adding the
2 following section:-

3 Section 31. (a) As used in this section, the following words shall have the following
4 meanings unless the context clearly requires otherwise:

5 “Disposable menstrual products”, products used by a menstruating individual including,
6 but not limited to, sanitary napkins, tampons and underwear liners.

7 “Menstruating individual”, a person who menstruates.

8 (b) Any provider of temporary housing assistance, including, but not limited to, a family
9 shelter, a shelter for adults, a hotel used for emergency shelter, an emergency apartment, a
10 domestic violence shelter, a runaway and homeless youth shelter or a safe house for refugees,
11 shall provide disposable menstrual products at no cost to a menstruating individual. The

disposable menstrual products shall be made available in a readily accessible location and in a manner that minimizes any stigmatization the individual seeking such products.

SECTION 2. Chapter 71 of the General Laws is hereby amended by inserting after section 3 the following section:-

Section 3A. (a) As used in this section, the following words shall have the following meanings unless the context clearly requires otherwise:-

“Disposable menstrual products”, products used by a menstruating individual including, but not limited to, sanitary napkins, tampons and underwear liners.

“Menstruating individual”, a person who menstruates.

(b) Every elementary and secondary public school shall provide disposable menstrual products to students at no cost. The disposable menstrual products shall be made available in readily accessible locations, including, but not limited to, in restrooms for menstruating individuals, and in a manner that minimizes any stigmatization of individual seeking such products

SECTION 3. Chapter 127 of the General Laws is hereby amended by adding the following section:-

Section 172. (a) As used in this section, the following words shall have the following meanings unless the context clearly requires otherwise:

“Administrator”, the keeper of a lockup facility under section 35 of chapter 40, the superintendent of a correctional facility under chapter 125, a sheriff or special sheriff in charge of a jail, house of correction or regional lockup facility under chapter 126, the colonel of state

33 police or any other official who oversees a facility used for the detention of persons arrested and
34 held in custody or serving a sentence.

35 “Disposable menstrual products”, products used by a menstruating individual including,
36 but not limited to, sanitary napkins, tampons and underwear liners.

37 “Menstruating individual”, a person who menstruates.

38 (b) The administrator shall provide disposable menstrual products to menstruating
39 individuals held or housed in the facility overseen by the administrator at no cost. The disposable
40 menstrual products shall be available in readily accessible locations and in a manner that
41 minimizes any stigmatization of the individual seeking such products.